

ZONING BOARD OF ADJUSTMENT PUBLIC HEARING AND MEETING
Wednesday, November 12, 2025

A public hearing of the Zoning Board of Adjustment was held on Wednesday, November 12, 2025 at 6:30 PM, at City Hall.

Jay Minkarah, Chair, asked for a Roll Call:

Jay Minkarah, Chair
Josh Nehiley, Vice Chair
JP Boucher
Rob Shaw
Joseph Patry - Alternate

Carter Falk, Deputy Planning Manager

Mr. Minkarah explained the Board's procedures, stating that the public is encouraged to submit their comments for future meetings via email to the Planning Department, which is zb@nashuanh.gov, or by mail, at P.O. Box 2019, Nashua, NH, 03061. Mr. Minkarah identified the points of law required for applicants to address relative to variances and special exceptions. Mr. Minkarah explained how testimony we will be given by applicants, those speaking in favor or in opposition to each request, as stated in the Zoning Board of Adjustment (ZBA) By-laws.

- 1. Yu Feng Soon (Owner) 61 Amherst Street (Sheet 63 Lot 50) requesting the following: 1) use variance from Land Use Code Section 190-15, Table 15-1 (#90) to allow mixed commercial and residential use where commercial use is primarily on first floor, with dwellings occupancy on second floor in the RB zone; and, 2) special exception from Land Use Code Section 190-16 (E)(3)(a) , Table 16-2, for a minor encroachment of 4 feet into the 7 foot required right side yard setback to construct an exterior staircase to provide access to proposed second story dwelling unit. RB Zone, Ward 3. [Approved by ZBA on 8-10-2021, approval has expired]**

Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Joseph Patry

Attorney Elizabeth Hartigan, Gottesman and Hollis, P.A., 39 East

Pearl Street, Nashua, NH. Atty. Hartigan stated that Attorney Morgan Hollis presented the exact same application to the Board in 2021, it was during the Covid time, and construction wasn't done at that time, and now they are ready to proceed. Atty. Hartigan said that one request is for the variance, which is to allow mixed use in the RB Zone, and the second request is a special exception to allow a minor encroachment on the side yard setback for an exterior staircase to access the proposed residential unit to be built on the second floor.

Atty. Hartigan said that the property is currently developed with a 28'x60', single-story dental office, it's likely one of the smallest buildings on Amherst Street. She said in 1970, the property was granted a variance to allow the dentist office in this zone. She said that the proposal is to add a second story to the building for one residential unit, with a staircase on the side of the building for access.

Atty. Hartigan said that granting the variance will not be contrary to the public interest, the property has been occupied as a dentist office for about fifty years, and the request will only add one residential unit on top of the dentist office, and it will not affect the character or density of the neighborhood, and it is the only single-story building in the neighborhood. She said that there is adequate parking for both the dental office and the residential unit.

Atty. Hartigan said that substantial justice will be granted to the owner, as the lot is under-utilized, there is a fair amount of open space and the building is small.

Atty. Hartigan said that the variance will not threaten public health, safety or welfare, as the new residential unit will be accessed by a separate new stairway, and the property will be serviced by Pennichuck Water. She said that the building will not impact the public interest, as there are numerous other residential units in the neighborhood.

Atty. Hartigan said that the approval of this request will not impact the property values of surrounding properties, the proposed use does not have any expansion of the building footprint, and the use is compatible with the neighborhood and the RB Zone.

Atty. Hartigan said that the special conditions that exist on this property that result in unnecessary hardship are the fact that

this is a unique property in that it received a variance in 1970 for a dentist office, it's a small, single-story building that sits between two multi-family homes, and multi-family units are across the street, and it makes no sense to apply the ordinance against a mixed use for this property, when there is no fair and substantial relationship preventing a residential use in a residential zone, and this is a reasonable use of the property.

Atty. Hartigan said that for the special exception for the minor encroachment into the setback, the physical encroachment will be approximately four feet into the seven foot setback, there will be a very minimal impact to traffic and pedestrian safety by adding a single dwelling above a commercial use, the staircase would be set back from the road, and it will not create undue traffic congestion or unduly impair pedestrian safety, will not overload any public utilities, and this will not negatively impact the character and integrity of the neighborhood.

Mr. Shaw asked if the property, simply by its dimensions, allow a two-family building without any variances.

Mr. Falk said it would need 12,445 square feet of land for a two-unit building, it's close, but a little bit short.

Mr. Minkarah said that there are many two and three unit buildings in this immediate area.

SPEAKING IN FAVOR:

No one.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

No one.

END OF PUBLIC HEARING, BEGINNING OF PUBLIC MEETING:

Mr. Nehiley said that he is in favor of the application, for both requests, and they were both approved by the Board in 2021, and they haven't changed. He said that this area has many long, thin lots, with multi-story multi-family buildings, this will make it look like the buildings around it, also, the dentist office has been there since the early 1970's, and there is no reason to not have this move forward. He said for the special exception, it makes sense to where they proposed it, and it may not even be

noticed.

Mr. Shaw said that he is in support.

Mr. Minkarah said that he is also in support, and the addition of one unit will not significantly increase traffic, there is adequate parking, and it's actually making the lot more conforming by adding a residential use, which is permitted, and the structure will look like it is more in keeping with the character of the neighborhood, which is mostly two and three story buildings.

MOTION by Mr. Nehiley to approve the variance application on behalf of the owner as advertised. He stated that the Board found it would not be contrary to the public interest, in that most of the properties in that area already are two floors, this request will allow it to conform more to the other buildings in that area.

Mr. Nehiley said that the request is within the spirit and intent of the Ordinance, because the facility has been a dentist office since the 1970's, and adding in some additional housing, which is what the RB Zone is all about.

Mr. Nehiley stated that substantial justice will be served, in that the applicant does have the right to add onto the property as necessary, in this case, they are adding on a residential unit, which is in the right financial reason to make this adjustment to the facility.

Mr. Nehiley stated that the Board has no testimony regarding the property value of surrounding properties, but the Board believes that the property values would not be affected.

Mr. Nehiley said that there are special conditions of the property that distinguish it from other properties in the area, as the Board noted, this building is one of the few single-story buildings in that area, it has a long-standing dental business that has been there for a long time, and the applicant is looking to add some housing to the proposed second floor, which is normal along Amherst Street in the RB Zone to have multiple floors of residential, so they should be allowed to add onto the property to make that second floor a reality.

SECONDED by Mr. Boucher.

MOTION CARRIED UNANIMOUSLY 5-0.

MOTION by Mr. Nehiley to approve the special exception on behalf of the applicant as advertised.

SECONDED by Mr. Patry.

MOTION CARRIED UNANIMOUSLY 5-0.

2. **Balaji P. & Vidya P. Iyengar (Owners) 3 Cherrywood Drive (Sheet C Lot 2592) requesting variance from Land Use Code Section 190-25 (D) (1) to encroach up to 5 feet into the 25 foot required front yard setback to construct an 8'x38' front farmers porch. FUOD Zone, Ward 5.**

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Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Joseph Patry

Balaji Iyengar, 3 Cherrywood Drive, Nashua, NH. Mr. Balaji said that they have two flower beds on both sides of the property, and are trying to have a farmers porch in that area, the flower beds are seven feet deep each, and want to have an eight-foot deep farmers porch on top of the flower beds. He said that porch will add to the curb appeal, and will help with property values, also, a lot of homes in the neighborhood have similar farmers porches, so it will not impact anyone.

Mr. Shaw asked why it would be eight feet deep, versus six feet, because the house is fairly close to the street, and the encroachment could be lessened with a narrower porch. He said that a lot of the farmers porches in the neighborhood are six feet in depth, which seems like a reasonable dimension.

Mr. Balaji said that they would prefer the bigger space, it would be easier if there are more people to entertain out there. He said that the flower beds are seven feet deep, and it would cover over the existing beds.

Mr. Minkarah asked about the specific use of the farmers porch, and is aesthetic, or would it enhance the use of the home.

Mr. Balaji said that the family does plan to sit out there and enjoy the outdoors and open space.

SPEAKING IN FAVOR:

Mrs. Iyengar said that they like the outdoors, and would like to utilize the farmers porch and entertain friends and family.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

No one.

END OF PUBLIC HEARING, BEGINNING OF PUBLIC MEETING:

Mr. Nehiley said that he is in support, the Hayner Swanson plan shows the bump out is two feet, where the applicant is looking for an extra five feet, but the Board has seen many of these applications in this neighborhood, it's common. He said that there is a little bit of a turn in the road on Cherrywood Drive here, it's not straight, and it will look conforming to many of the properties in the area and to be two feet in the setback is very minimal.

Mr. Minkarah asked if six feet is a viable depth for a farmers porch.

Mr. Shaw said that he believes that it is, and with the bump out and the extra two feet, and it is where the entrance to the house is, the dimensions make more sense with the bump out there.

MOTION by Mr. Patry to approve the variance application on behalf of the owner as advertised. Mr. Patry stated that the Board found it would not be contrary to the public interest, because this is a minor encroachment into the setback, and the character of the neighborhood would be maintained.

Mr. Patry said that the request is within the spirit and intent of the Ordinance, because this is a minor encroachment that would not impact the neighbors or otherwise impact the character of the neighborhood.

Mr. Patry stated that substantial justice will be served, it will allow the owners to more fully utilize and enjoy their property.

Mr. Patry stated that the Board had no testimony on whether

surrounding property values would be diminished, but believes that surrounding property values will not be impacted, given the minor encroachment.

Mr. Patry stated that for unnecessary hardship, owing to special conditions of the property that distinguish it from other properties in the area, that denial of the variance would result in an unnecessary hardship because there is no fair and substantial relationship between the general public purpose of the ordinance and the specific application provision to this property because of the minor encroachment in the setback and the general character of the neighborhood, and because of the minor encroachment, the Board finds that this is a reasonable use.

SECONDED by Mr. Shaw.

MOTION TO APPROVE CARRIED UNANIMOUSLY 5-0.

- 3. Andrew M. & Jennifer L. Piper (Owners) 4 Doncaster Drive (Sheet B Lot 1767) requesting variance from Land Use Code Section 190-31 to encroach 4 feet into the 6 foot required left side yard setback to construct an 8'x10' shed. R9 Zone, Ward 9.**

Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Joseph Patry

Andrew Piper, 4 Doncaster Drive, Nashua, NH. Mr. Piper said that his house is one of the only houses in the neighborhood that has a single-car garage, and in the back yard, there is little space to have the shed, and it will be well-secluded, and barely seen from the street. He said that the back yard, it forms somewhat of a bowl, and on the right side, the elevation drops about eight feet from the front of the back yard to the rear of the back yard, and on the left side, the elevation drop is only about four feet, and when it rains, the yard can fill with water, so the proposed location works well. He said that the walls of the shed will not be tall, and with the elevation changes, it will be very difficult to see, and there is a fence there as well. He said that they meet the spirit of the ordinance, it will allow them to utilize the garage for a car.

SPEAKING IN FAVOR:

No one.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

No one.

END OF PUBLIC HEARING, BEGINNING OF PUBLIC MEETING:

Mr. Boucher said that he is in favor of the application, a shed is common, and on Doncaster Drive, there are at least six other sheds that are similarly situated at or near a property line, and there are some topographical challenges in the rear of the property, and it is a reasonable sized shed.

Mr. Shaw said that he is similarly in support, there is the fence to help block it, and with the topography, it explains that it is reasonable to place the shed where they want it.

MOTION by Mr. Boucher to approve the variance application on behalf of the owner as advertised. Mr. Boucher stated that the Board found it would not be contrary to the public interest, because it is allowing the homeowner to place a shed in the proposed location due to the topography of the property, and having a shed near the property line is actually in character with this neighborhood.

Mr. Boucher said that the request is within the spirit and intent of the Ordinance, because this does not fall outside the character of what is predominantly done in the neighborhood.

Mr. Boucher stated that substantial justice will be served, it will allow the homeowner to have a shed on his property and have use of the shed for storage, and there is only a one-car garage for storage.

Mr. Boucher stated that the Board had no testimony on whether surrounding property values would be diminished, but believe there will be no diminution of the surrounding property values by approving this variance.

Mr. Boucher stated that for unnecessary hardship, owing to special conditions of the property that distinguish it from other properties in the area, there are some lots in this neighborhood

that have some topographical issues with drop-off and elevation changes, and the Board finds that this is a reasonable use, it allows the homeowner to place a shed on his property in a manner which is reasonable.

SECONDED by Mr. Shaw.

MOTION TO APPROVE CARRIED UNANIMOUSLY 5-0.

- 4. Jeemon Jacob & Deepa Raju Kunnath (Owners) 27 Clearview Drive (Sheet B Lot 2372) requesting variance from Land Use Code Section 190-16 (E)(1) to exceed maximum driveway width, 24 feet permitted, 30 feet existing. R9 Zone, Ward 8.**

Voting on this case:

Jay Minkarah

Josh Nehiley

JP Boucher

Rob Shaw

Joseph Patry

Jeesmon Jacob, 27 Clearview Drive, Nashua, NH. Mr. Jacob said that they are requesting relief to exceed the 24 foot wide maximum driveway width. He said that their driveway is in a unique location, there is slope, and a retaining wall on the left side, so in winter time, it is hard to maintain the snow, it can only be pushed to one side. He said that they have a teenager that will soon be driving, so there will be an additional car, and if an extra car is in the driveway, it is harder to remove snow.

Mr. Jacob said that the driveway will maintain the 19-foot opening to the paved street, the expansion is the triangular shaped area in the submitted drawing, and it is within the setback, but the opening to the street will not be widened.

Mr. Nehiley said that the application mentioned snow and ice, that is evident, and there is the curvature going downward, and didn't think the extra driveway would take away the water flow.

Mr. Jacob said that the whole driveway would be removed, it will be re-graded. He said that the water from the public street comes into both the garage and the basement, so this will make the drainage a little better.

Mr. Nehiley asked how many cars would be in the driveway and garage all together.

Mr. Jacob said that there would be a total of three cars.

SPEAKING IN FAVOR:

No one.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

No one.

END OF PUBLIC HEARING, BEGINNING OF PUBLIC MEETING:

Mr. Nehiley said that the Board has taken a dim view on requests like this in the past, but in this case, with the flooding issues and with them taking the entire driveway out, and re-grading it, it has put him in favor of this request, and for safety reasons, is in favor.

Mr. Boucher said that he is also in favor, it's not being widened the full width going down to the street, and this neighborhood has similar situations with elevation changes, and the owner is trying to prevent any more flooding.

Mr. Shaw agreed, and the fact that it will not be widened to the full width down to the street really helps a lot.

Mr. Minkarah said that he agrees.

MOTION by Mr. Nehiley to approve the variance application on behalf of the owner as advertised. Mr. Nehiley stated that the granting of the variance would not be contrary to the public interest, because there are many driveways in this neighborhood that are larger, several of which are due to the significant topographical changes, and there is concern about water runoff in this area.

Mr. Nehiley said that the request is within the spirit and intent of the Ordinance, the owner does not have the full allowed width at this time at the street entrance, and they will make an adjustment to widen the driveway primarily for safety reasons.

Mr. Nehiley stated that substantial justice will be served to the owner, the applicant noted that they did have some flooding in

their driveway, and the driveway will be re-graded to minimize the threat of flooding.

Mr. Nehiley stated that the Board did not have any testimony about the value of surrounding properties being affected one way or another, but believes it will not be diminished.

Mr. Nehiley stated that for unnecessary hardship, this house has been negatively affected by water runoff, snow, rain, etc., causing potential damage to the house, so the owner is trying to make some adjustments to the driveway to minimize potential safety issues, especially with ice in the winter.

SECONDED by Mr. Patry.

MOTION TO APPROVE CARRIED UNANIMOUSLY 5-0.

MISCELLANEOUS:

REGIONAL IMPACT:

The Board did not see any cases of Regional Impact for the next meeting.

MINUTES:

October 28, 2025:

Mr. Patry said on page four, third paragraph, he suggested adding the word "be" after "would not."

MOTION by Mr. Shaw to approve the minutes with the proposed changes, waive the reading, and place the minutes in the file.

SECONDED by Mr. Patry.

MOTION CARRIED UNANIMOUSLY 5-0.

ADJOURNMENT:

MOTION by Mr. Minkarah to adjourn the meeting at 7:20 p.m.

Submitted by: Mr. Falk, Clerk.

CF - Taped Hearing

Zoning Board of Adjustment

November 12, 2025

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